

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard
on Wednesdays at 9:00 a.m.

Date: June 17, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Zometa vs. Toyota Motor Sales, U.S.A., Inc.	OSC OFF CALENDAR CMC REMAINS
2	Farley vs. Hurlburt	TENTATIVE RULING: For the reasons set forth below, Defendant City of Anaheim's Demurrer to Plaintiff Mallory Farley's Second Amended Complaint is SUSTAINED, without leave to amend. As a preliminary matter, Plaintiff filed an Opposition on 6/8/26, which was untimely pursuant to Code Civ. Proc., § 1005(b). Plaintiff simultaneously filed an ex parte application for an order extending the time to file her Opposition to the demurrer, which was DENIED. The court will not consider the untimely Opposition. Plaintiff's request for judicial notice is also DENIED as untimely. <u>Standard</u> A demurrer only tests the sufficiency of the pleadings. (<i>See Satyadi v. West Contra Costa Healthcare District</i> (2014) 232 Cal.App.4th 1022, 1028 [in analyzing a demurrer, the court looks only to the face